

Public Comment

Topic III: ADA Accommodations During Court Proceedings

Submitted to the National Council on Disability

Submitted by: Kathryn Copeland (Texas) Attorney; Disabled Litigant with experience in Texas justice courts, appellate courts, and federal courts

Comment

I submit this comment as a disabled attorney who has litigated—both pro se and with counsel—in Texas justice courts, county courts, state appellate courts, and federal court, and who has repeatedly requested reasonable accommodations under Title II of the Americans with Disabilities Act in those forums.

My experience reflects not an isolated denial, but a **recurring procedural failure in how courts assess, grant, deny, or delay accommodation requests**, often in ways that materially affect litigation outcomes rather than merely courtroom convenience.

I. Absence of a Defined Interactive Process for ADA Accommodations in Courts

Across multiple courts, I have observed that accommodation requests are frequently treated as discretionary scheduling matters rather than as civil rights determinations governed by Title II.

Requests are often:

- Denied without written findings or explanation;
- Deferred indefinitely, effectively mooting the request; or
- “Resolved” through delay rather than through an accessible method of participation.

These practices are inconsistent with Title II’s requirement that public entities provide meaningful access to court proceedings. In several instances, courts issued flat denials of accommodation requests without engaging in any discernible interactive process or identifying

alternative accommodations, despite the ADA's requirement that public entities either provide a reasonable accommodation or engage in a good-faith process to determine an effective alternative.

This absence of a standardized interactive process leaves disabled litigants without clarity, predictability, or meaningful recourse.

II. Delay as a De Facto Denial of Access

A recurring pattern is the use of postponement or continuance as a substitute for accommodation. In practice, this often results in:

- Disabled litigants being forced to endure prolonged proceedings,
- Statutory timelines being undermined (particularly in expedited dockets such as housing or family law),
- And effective exclusion from proceedings where the format—not the timing—creates the barrier.

Delay does not restore access where the method of participation remains inaccessible. Nevertheless, courts frequently treat delay as a neutral or even benevolent response, rather than recognizing it as a potential failure to accommodate.

III. Discretion Concentrated in Individual Judges Without Guardrails

In the courts where I have appeared, the decision whether to grant an accommodation has often rested solely with the presiding judge, without involvement from an ADA coordinator, formal grievance mechanism, or articulated standard.

This creates wide variability in outcomes depending on individual judicial familiarity with disability law, and places disabled litigants in the untenable position of having to educate the court on ADA requirements while actively litigating their cases.

IV. Impact on Case Outcomes, Not Just Courtroom Experience

These procedural gaps have consequences beyond discomfort or inconvenience. Denial or mishandling of accommodations affects:

- The evidentiary posture of cases,
- The ability to present or respond to arguments,
- Compliance with statutory deadlines,
- And, ultimately, the substantive rights at stake.

When accommodation failures alter who can meaningfully participate—and how—access to justice itself is compromised.

V. Recommendations for Systemic Reform

Based on these experiences, I respectfully offer the following recommendations for the Council's consideration:

1. Require courts to document accommodation decisions

Courts should be required to issue brief written findings when an accommodation request is denied or modified, including identification of any alternative accommodation considered.

2. Standardize the interactive process

State court systems should adopt clear procedures requiring engagement in the interactive process, rather than allowing summary denials.

3. Clarify that delay is not an accommodation

Judicial training and court rules should explicitly recognize that postponement does not satisfy Title II where the method of proceeding remains inaccessible.

4. Define the role of ADA coordinators

Courts should clearly identify ADA coordinators, define their authority, and establish accessible grievance procedures separate from the merits of the underlying case.

5. Target training for high-impact dockets

Judges presiding over housing, family, protective order, and other expedited proceedings should receive focused training on ADA accommodations, given the heightened risk of irreparable harm from access failures.

Closing Observations and Recommendations

The absence of clear, enforceable procedures for ADA accommodations in court proceedings does not merely inconvenience disabled litigants—it predictably shapes outcomes, particularly in expedited and high-stakes dockets. When accommodation requests are denied, deferred, or resolved through delay rather than accessibility, the result is not neutrality but exclusion.

Courts would benefit from:

1. Accessible grievance procedures separate from the merits of the underlying case.

Accommodation determinations should not be conflated with substantive rulings or conditioned on perceived credibility, litigation posture, or docket pressure.

2. Targeted ADA training for high-impact dockets.

Judges presiding over housing, family, protective order, and other expedited proceedings should receive focused instruction on Title II obligations, given the heightened risk of irreparable harm when access failures occur in summary or emergency contexts.

Addressing these gaps would materially improve equal access to justice while also providing judges with clearer guidance and institutional support—reducing ad hoc decision-making and unnecessary procedural conflict.

I submit these observations not only as a litigant, but as an attorney trained to identify procedural safeguards and their absence. I would welcome the opportunity to provide additional information, documentation, or clarification if helpful to policymakers, judicial administrators, or researchers working in this area.

Respectfully submitted,

A handwritten signature in dark ink, appearing to read "Katie Copeland", written in a cursive style.

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